

Law & Ethics: Definition and Nature

Lecture 1

Definition of Law

✓ law is a rule of conduct developed by the government or society over a certain territory. Law follows certain practices and customs in order to deal with crime, business, social relationships, property, finance, etc. The Law is controlled and enforced by the controlling authority.

Different definition

Natural School

- In the natural school of thought, a court of justice decides all the laws. There are two main parts of this definition. One, to actually understand a certain law, an individual must be aware of its purpose. Two, to comprehend the true nature of law, one must consult the courts and not the legislature.

Positivist approach

- **John Austin's** law definition states "Law is the aggregate set of rules set by a man as politically superior, or sovereign to men, as political subjects."
- Kelsen states that law is a 'normative science'. In Kelsen's law definition, the law does not seek to describe what must occur, but rather only defines certain rules to abide by.

Historical Approach

- **Friedrich Karl von Savigny says**
- Law is a matter of unconscious and organic growth.
- The nature of law is not universal. Just like language, it varies with people and age.
- Custom not only precedes legislation but it is superior to it. Law should always conform to the popular consciousness because of customs.

Sociological approach

- **Leon Duguit** states that law as “essentially and exclusively as a social fact.”
- **Roscoe Pound** says that the law to be predominantly a tool of social engineering.

Realism

- **Oliver Wendell Holmes** stated – “Law is a statement of the circumstances in which public force will be brought to bear upon through courts.”
- According to **Benjamin Nathan Cardozo** who stated “A principle or rule of conduct so established as to justify a prediction with reasonable certainty that it will be enforced by the courts if its authority is challenged, is a principle or rule of law.

Sources of Law

1. Legislation ✓

- Legislation is the prime source of law. and consists in the declaration of legal rules by a competent authority. The legislature may delegate law-making powers to lower bodies. As such delegated legislation includes Statutory Instruments, Orders in Council, & Bye-laws. Delegated legislation may be open to challenge for irregularity of process; and the legislature usually has the right to withdraw delegated powers if it sees fit.

- **Case Law**

- Judicial precedent is based on the doctrine of *stare decise*, and the concept has been adopted in part by Civil Law systems. Precedent is the accumulated principles of law derived from centuries of decisions. Judgements passed by judges in important cases are recorded and become significant source of law. When there is no legislature on a particular point which arises in changing conditions, the judges depend on their own sense of right and wrong and decide the disputes from first principles

Bangladesh constitution

- Article 152
- Law means any Act, ordinance, order, rule, regulation, bye-law, notification or other legal instrument and any custom or usage, having the force of law in Bangladesh.
- আইন, অধ্যাদেশ, আদেশ, বিধি, প্রবিধান, উপ-আইন, বিজ্ঞপ্তি, অন্যান্য আইনগত দলিল এবং বাংলাদেশে আইনের ক্ষমতা সম্পন্ন যে কোন প্রথা বা রীতি।

① Definition of law

② Sources of law

③ Kinds of law

Criminal law

Civil law

Constitutional law

administrative law

Substantive law

Procedural law,

Right ~~And~~ Duty,

a set of values and standards that guide the behaviour of people in a specific profession,